

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EVA FERRO,

Plaintiff,

-against-

CITY OF NEW YORK; NYPD Officer Brandon
MORALES, Tax No. 971570; NYPD Officers JOHN and
JANE DOE 1 through 10, (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates BRONX
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
June 1, 2023

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 900
New York, New York 10279
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TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NYPD Officer Brandon MORALES, Tax No. 971570

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COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

PLAINTIFF EVA FERRO, by PLAINTIFF'S attorney, the LAW OFFICE OF
KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

PARTIES

1. PLAINTIFF EVA FERRO, was and is a female and has been at all relevant times
a resident of QUEENS County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department ("NYPD"), duly authorized public authorities and/or police departments, authorized
to perform all functions of a police department as per the applicable sections of the New York
State Criminal Procedure Law, acting under the direction and supervision of the aforementioned
municipal corporation, The City of New York. The NYPD is responsible for the appointment,

training, supervision, promotion and discipline of officers and supervisory security officers and staff, including the individually named defendants herein.

4. At all times relevant defendants NYPD Officer Brandon MORALES, Tax No. 971570, and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. Plaintiff has complied with all conditions precedent to suit.

STATEMENT OF FACTS

9. On or about March 5, 2022, at approximately 11:15 p.m., PLAINTIFF was lawfully within the vicinity of 18th Street and 11th Avenue, Brooklyn, New York.

10. PLAINTIFF was lawfully in the vicinity of the above referenced location, in her vehicle when NYPD Defendants, including NYPD Officer Brandon MORALES, Tax No. 971570, approached her without legal justification.

11. Despite the fact that the NYPD Defendants, including Defendant MORALES, lacked reasonable suspicion or probable cause to believe that PLAINTIFF had committed any crimes or offenses, the officers unlawfully stopped and searched the PLAINTIFF in retaliation for a prior incident with PLAINTIFF's son.

12. Defendant MORALES then placed PLAINTIFF into handcuffs and under arrest without a lawful justification.

13. PLAINTIFF was transported to the police precinct and then central booking and was let out the back door without any charges being filed after the DA's office declined to prosecute the case.

14. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, economic damages, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

CLAIM ONE
Under State and Federal Law
UNREASONABLE FORCE

15. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

16. The defendants violated the Fourth and Fourteenth Amendments and New York State Law because they used unreasonable, excessive, and unjustified force on PLAINTIFF.

17. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained

the damages hereinbefore alleged.

CLAIM TWO
Under State Law
NEGLIGENCE

18. PLAINTIFF repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

19. Defendant City of New York for the oversight of its agents, servants, and/or employees, who include officials and staff at NYC NYPD.

20. Defendant CITY was negligent in taking action to ensure PLAINTIFF's safety, after PLAINTIFF notified DOE Defendants that he feared for her safety. DOE Defendants knew, or should have known, the dangers and threats to PLAINTIFF's safety.

21. Defendant CITY was negligent in taking action to ensure PLAINTIFF's and other inmates safety, by not properly monitoring inmates and allowing them to obtain contraband sharp objects. DOE Defendants knew, or should have known, the dangers and threats to PLAINTIFF's safety.

22. Furthermore, the City is liable for damages caused by the negligent or wrongful acts of its agents, servants, and/or employees acting within the scope of their employment.

23. NYPD officials and staff have a duty to protect inmates.

24. Prison officials and staff breached their duty to protect PLAINTIFF from harm by failing to take any actions to protect her from these risks to her safety.

25. As a result of these actions and inactions by prison staff and officials, PLAINTIFF suffered and is still experiencing pain and permanent injuries, shock, fright and loss of freedom.

CLAIM THREE
Under State Law
ASSAULT and BATTERY

26. PLAINTIFFS repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

27. The individual defendants placed a mark on PLAINTIFF, which directly placed PLAINTIFF in apprehension of imminent harmful and offensive bodily contact.

28. Defendants' aforementioned actions caused PLAINTIFF to be subjected to unauthorized physical contact that resulted in injury.

29. Defendant NYPD officers did so without privilege or consent from PLAINTIFF.

30. As a result of defendants' conduct, PLAINTIFF suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

CLAIM FOUR
Under State Law
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

31. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

32. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

33. The aforementioned conduct was committed by the Individual Defendants while acting within the scope of their employment by defendant City.

34. The aforementioned conduct was committed by Individual Defendants while acting in furtherance of their employment by defendant CITY.

35. The Defendant employer CITY is responsible for the wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

36. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to PLAINTIFF.

37. As a result of these actions and inactions of the Defendants, PLAINTIFF suffered damages alleged herein.

CLAIM FIVE
Under State Law
NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

38. PLAINTIFF repeat and reallege each and every allegation as if fully set forth herein.

39. By reason of the foregoing, each Defendant was negligent in committing conduct that inflicted emotional distress upon PLAINTIFF.

40. The negligent infliction of emotional distress by these Defendants was unnecessary and unwarranted in the performance of their duties.

41. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon PLAINTIFF.

42. The Defendant employer CITY is responsible for the wrongdoings of their employees and agents under the doctrine of *respondeat superior*.

43. As a direct and proximate result of the misconduct and abuse of authority detailed above, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SIX
Under Federal Law
DELIBERATE INDIFFERENCE TO SAFETY/MEDICAL NEEDS

44. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

45. The Individual Defendants were aware of a risk to PLAINTIFF's safety and a need for medical care and failed to act in deliberate indifference to PLAINTIFF's needs.

46. Specifically, they knew of a specific threat to her safety and refused to address that threat, ignored that threat, and as a result PLAINTIFF was injured.

47. Accordingly, defendants violated the Fourth, Fourteenth, and Eighth amendments because they acted with deliberate indifference to PLAINTIFF's medical needs and safety.

48. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

CLAIM SEVEN
Under Federal Law
FAILURE TO INTERVENE

49. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

50. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

51. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

52. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained the damages hereinbefore alleged.

53. PLAINTIFF repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

CLAIM EIGHT
Under Federal Law
DEPRIVATION OF FEDERAL RIGHTS

54. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

55. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

56. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

57. The acts complained of were carried out by the aforementioned individual defendants in their capacities as NYPD officers with all the actual and/or apparent authority attendant thereto.

58. The acts complained of were carried out by the aforementioned individual defendants in their capacities as NYPD officers, pursuant to the customs, usages, practices,

procedures, and the rules of the City of New York, the New York Police Department, and the all under the supervision of ranking officers of said department.

59. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

CLAIM NINE
Under State Law
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

60. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

61. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

62. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

63. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation, shock, fright, and loss of freedom.

CLAIM TEN
Under Federal Law
MUNICIPAL LIABILITY

64. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

65. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

66. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures; and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

67. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

68. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

69. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York, New York City Police Department, were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

70. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

71. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate NYPD officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

72. The acts complained of deprived the PLAINTIFF of her right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon her; and
- D. To receive equal protection under the law.

CLAIM ELEVEN

Under N.Y.C. ADMIN. CODE §§ 8-801 TO 8-807

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

74. Plaintiff's right to be free from unreasonable searches and seizures was violated by the conduct of the Individual Defendants.

75. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

76. Qualified immunity is no defense to this claim.

77. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

78. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
June 1, 2023

Katherine Smith
Katherine E. Smith
233 Broadway, Ste. 900
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorney for PLAINTIFF EVA FERRO in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
June 1, 2023



Katherine E. Smith